

marks in loyalty; and after all, loyalty is the name of the game.'"⁸ Butterfield therefore recommended that "[w]e should let him bleed, for a while at least."⁹ There is no evidence of White House efforts to reemploy Fitzgerald subsequent to the Butterfield memorandum.

Absent any offer of alternative federal employment, Fitzgerald complained to the Civil Service Commission. In a letter of January 20, 1970, he alleged that his separation represented unlawful retaliation for his truthful testimony before a congressional Committee.¹⁰ The Commission convened a closed hearing on Fitzgerald's allegations on May 4, 1971. Fitzgerald, however, preferred to present his grievances in public. After he had brought suit and won an injunction, *Fitzgerald v. Hampton*, 152 U. S. App. D. C. 1, 467 F. 2d 755 (1972), public hearings commenced on January 26, 1973. The hearings again generated publicity, much of it devoted to the testimony of Air Force Secretary Robert Seamans. Although he denied that Fitzgerald had lost his position in retaliation for congressional testimony, Seamans testified that he had received "some advice" from the White House before

⁸ Quoted in *Decision on the Appeal of A. Ernest Fitzgerald* (Sept. 18, 1973) (*CSC Decision*), reprinted in App. 60a, 84a. (Page citations to the *CSC Decision* refer to the cited page in the Joint Appendix.)

⁹ *Id.*, at 85a. The memorandum added that "[w]e owe 'first choice on Fitzgerald' to [Senator] Proxmire and others who tried so hard to make him a hero [for exposing the cost overruns]." Suspicion of Fitzgerald's assumed loyalty toward Senator Proxmire was widely shared in the White House and in the Defense Department. According to the *CSC Decision*, *supra*:

"While Mr. Fitzgerald has denied that he was 'Senator Proxmire's [*sic*] boy in the Air Force', and he may honestly believe it, we find this statement difficult to accept. It is evident that the top officials in the Air Force, without specifically saying so, considered him to be just that. . . . We also note that upon leaving the Air Force Mr. Fitzgerald was employed as a consultant by the Proxmire Committee and that Senator Proxmire appeared at the Commission hearing as a character witness for [Fitzgerald]." App. 83a.

¹⁰ *Id.*, at 61a.